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Case Number: 26NNCV01980 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

SPECIAL MOTION TO STRIKE

Los

Angeles Superior Court Case # 26NNCV01980

MP: Defendant Brandt Stites

RP: Plaintiffs Bay Cities Law Group, Inc. and Steven Zelig

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Bay

Cities Law Group, Inc. ("BCLG") and Steven Zelig ("Mr. Zelig") (together, "Plaintiffs") allege that in 2019, the home of Lynn B. Stites ("Decedent") and Defendant Erma Lee Miller, individually ("Miller") and as Decedent's successor in interest, was vandalized by their biological daughter, Sonia, such that they made an insurance claim to State Farm on behalf of Miller, Decedent, and their granddaughter "TR." (Compl., ¶8.) Plaintiffs allege that in 2019 until the Underlying Action was filed in mid-2020, legal aspects of the insurance claim were pursued by Decedent and aided and abetted by Glenn Murphy (Miller's son, "Mr. Murphy") and Litigation Advocacy Group ("LAG") (together, "Murphy Defendants"). (Id., ¶9.) Plaintiffs allege Decedent and Murphy Defendants mishandled the Miller et al. v. State Farm case (LASC Case No. 20BBCV00479; hereinafter, "Underlying Action"), thereby negatively impacting the claim and lawsuit against State Farm. (Id., ¶10.) In August 2020, Murphy Defendants filed the Underlying Action on behalf of Miller, Decedent, and TR, but Plaintiffs now are informed and believe that Decedent ghost-wrote the pleadings, litigation-related documents, and letters to State Farm to create the appearance that they were written by Miller; Decedent practiced law without a license and after disbarment; Decedent was aided and abetted by Miller and Murphy Defendants; and Miller aided and abetted Decedent's unauthorized and illegal practice of law. (Id., ¶¶11-12.)

In

early/mid-2023, Mr. Murphy recruited Plaintiffs to take over representation of the Millers. (Compl., ¶14.) In fall 2023, Decedent passed away and his claims were taken over by Miller as successor with Murphy Defendants as attorneys of record in the Underlying Action.

(Id., ¶15.) Plaintiffs

allege Murphy Defendants failed to adequately represent the Millers, failed to obtain and preserve key evidence, and abandoned representing Miller and TR after Decedent's death. (Id.,

¶16.) In August 2024, Miller

(individually and as Decedent's successor in interest) entered into a fee agreement for handling the Underlying Action with BCLG. (Id., ¶¶17-18.) BCLG, through Mr. Zelig and other employees, invested time in the Underlying Action.

(Id., ¶19.)

During

BCLG's representation, Defendant Brandt Stites (Miller's other son, "Mr. Stites")

falsely held himself out to Mr. Zelig as a licensed attorney and volunteered his time, never requested a fee, and was not a part of any fee or fee-splitting agreement. (Compl., ¶20.) Plaintiffs later learned that Mr. Stites received his law license in late January 2025 outside of California. (Id.)

In mid-2025, as a result of Plaintiffs' representation, the Underlying Action settled for a confidential amount. (Compl., ¶22.) Plaintiffs allege that Defendants fabricated a dispute and records to cheat BCLG of their fees, asserted that the fee agreement was unconscionable, made false accusations against Mr. Zelig that he conducted himself abusively with TR, and asserted that BCLG waived its right to fees. (Id., ¶¶22-24, 27, 30.)

By way of this action, Plaintiffs seek to compel arbitration against Miller pursuant to the attorney-client fee agreement, and for declaratory relief and damages against the Murphy Defendants and Mr. Stites in this civil action. (Compl., ¶¶1-2.)

The Complaint, filed March 18, 2026, alleges: (1) an Order Compelling Arbitration by Plaintiffs against Miller, individually and as Decedent's successor in interest; (2) Declaratory Relief by Plaintiffs against Mr. Murphy, LAG, and Mr. Stites; (3) Conversion by BCLG against Mr. Murphy, LAG, and Mr. Stites; and (4) Intentional Infliction of Emotional Distress by Zelig against Mr. Murphy, LAG, and Mr. Stites.

On August 21, 2026, Plaintiffs dismissed without prejudice the Third and Fourth Causes of Action against Murphy Defendants (Mr. Murphy and LAG) only.

MOTION

ON CALENDAR:

On July 20, 2026, Brandt Stites ("in pro per, with assistance from Litigation Advocacy Group") filed a Special Anti-SLAPP Motion to Strike Plaintiffs' Complaint. On August 31, 2026, Plaintiffs filed an untimely opposition which the Court will consider. On September 3, 2026, Mr. Stites filed a

reply.

LEGAL STANDARD:

C.C.P. § 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; C.C.P. § 425.16(b)(1).) “Only a cause of action that satisfies both prongs ... is a SLAPP, subject to being stricken under the statute.” (*Navellier*, supra, 29 Cal.4th at 89.)

First, the defendant must make the threshold showing that the challenged cause of action arises from protected speech or petition activity. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76.) “[T]he statutory phrase ‘cause of action...arising’ from means simply that the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.” (*Id.* at 78.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under C.C.P. § 425.16(e). (*Id.*)

Second, [i]f the court finds such a showing has been made, it then must determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (*Navellier*, supra, 29 Cal.4th at 88.) To meet this second step, the plaintiff must demonstrate: (1) “that the complaint is both legally sufficient” and (2) “supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Id.* at 89 [internal quotation marks omitted].)

In analyzing the second step, the court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (C.C.P. § 425.16(b)(2).) The evidentiary showing by the plaintiff must be made by competent and admissible evidence. (*Morrow v. Los Angeles Unified Sch. Dist.* (2007) 149 Cal.App.4th 1424, 1444; *Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497-98 [proof cannot be made by declaration based on information and belief]; *Tuchscher Dev. Enters., Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1236-38 [documents submitted without proper foundation could not be considered in determining

plaintiff's probability of prevailing on its claim].) However, "[l]ooking at those affidavits, [the courts] do not weigh credibility, nor...evaluate the weight of the evidence. Instead [the courts] accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law." (Grewal v. Jammu (2011) 19 Cal.App.4th 977, 989 [internal quotation marks omitted].)

ANALYSIS:

A.

Plaintiffs' Objection to the Motion

"The special motion may be filed within 60 days of the service of the complaint or, in the court's discretion, at any later time upon terms it deems proper. The motion shall be scheduled by the clerk of the court for a hearing not more than 30 days after the service of the motion unless the docket conditions of the court require a later hearing." (C.C.P. § 425.16(f).) "Section 425.16, subdivision (f), however, does not require a moving defendant to request leave of court prior to filing an untimely motion. Instead, subdivision (f) authorizes the court, in its discretion, to consider an untimely motion without restriction as to whether or when the moving defendant so requests." (Chitsazzadeh v. Kramer & Kaslow (2011) 199 Cal.App.4th 676, 684.)

The Proof of Service of Summons, filed April 16, 2026, shows that the summons and complaint were personally served on Brandt Stites on April 11, 2026 at 1:43 p.m. at 1229 Dedi Ave., South Lake Tahoe, CA 96150. Sixty days from the April 11, 2026 service date is June 10, 2026.

In their untimely opposition, Plaintiffs object to the entirety of the motion, arguing that it was not timely filed because Mr. Stites' motion was filed almost 100 days after service and he did not obtain the Court's permission for the late filing.

Mr. Stites was personally served on April 11, 2026, such that he was required to file a special motion to strike by June 10, 2026 (60 days). However, the motion was filed on July 20, 2026, which is the 100th day. As such, it is untimely unless the Court exercises its discretion to allow the late filing.

The following background is relevant.

On May 8, 2026, Mr. Stites filed a Declaration of Demurring or Moving Party in Support of Automatic Extension. He states that on May 4, 2026, he drafted an email to Mr. Zelig to meet and confer but discovered his email was in the draft folder; and he thereafter edited the email and sent it to Mr. Zelig. Mr. Stites declares that on May 8, 2026, Mr. Zelig responded, standing by the pleadings and requesting a response. Mr. Stites then states: "Thereafter, upon further review, Mr. Zelig's Complaint appears to be the proper subject of a special anti-SLAPP motion to strike. Accordingly, I respectfully request a statutory 60-day extension of time to prepare an anti-SLAPP motion for filing by July 10, 2026. Additionally, the requested extension is warranted to provide sufficient time to seek local counsel, as Mr. Zelig served me at my residence in Lake Tahoe and local counsel in Los Angeles is needed to assist me."

On July 16, 2026, the Court entered Murphy Defendants and Plaintiffs' Stipulation and Order Extending Time to File a Responsive Pleading, ordering that Murphy Defendants may file a responsive pleading to the Complaint up to and including July 31, 2026. The Court notes that there was no mention of Mr. Stites in the Stipulation and Order.

On August 18, 2026, the Court entered Murphy Defendants and Plaintiffs' Amended Stipulation and Order Extending Time to File a Responsive Pleading, ordering that Plaintiffs provide Miller's client file in the matter Miller et al. v. State Farm (LASC Case No. 20BBCV00479) to counsel for Murphy Defendants by July 26, 2026; Murphy Defendants may file a responsive pleading to the Complaint, including a Special Motion to Strike, by September 11, 2026; and the other was not to be construed as a waiver of Murphy Defendants' rights to respond by demurrer, motion to strike, special motion to strike, answer, or any other authorized pleading. Again, the Court notes that there was no mention of Mr. Stites in the Amended Stipulation and Order.

While Mr. Stites' Declaration of Demurring or Moving Party in Support of Automatic Extension includes a request to file his motion by July 10, 2026, it also shows that he did not make this request to Plaintiffs or seek a Court order. Furthermore, even if such a request were granted by way of the Declaration, Mr. Stites filed his motion on July 20, 2026, which is ten days after his requested filing deadline of July 10, 2026.

Next, the Court notes that it entered two separate Stipulations and Orders Extending Time to File a Responsive Pleading. The Stipulations/Orders defined “Defendants” to include only Glenn Murphy and Litigation Advocacy Group; mention of Mr. Stites was absent from these orders.

Furthermore, Mr. Stites is a self-represented litigant (as an out-of-state attorney) who appears to have the “assistance of” LAG, but he is not represented by LAG and there is no substitution of attorney form filed that LAG is representing Mr. Stites (before or at the time of the Stipulations/Orders).

Nevertheless, as stated in Chitsazzadeh, section 425.16(f) does not require Mr. Stites to have requested leave of Court prior to filing the untimely motion.

While this may have been a matter of professional courtesy to the parties and the Court, the Court may exercise its discretion to consider the untimely filed motion regardless of whether he requested an extension.

As Plaintiffs have substantively opposed Mr. Stites’ motion following their objection based on untimeliness, the Court will exercise its discretion and consider the substantive merits of the motion. As such, Plaintiffs’ objection is overruled.

B.

Prong 1: Arising
from Protected Activity – Mr. Stites’ Initial Burden

Mr. Stites addresses each cause of action directed against him, arguing that they arise from protected petition activities.

1. Second Cause
of Action for Declaratory Relief

Although Mr. Stites does not cite a specific subsection of C.C.P. § 425.16(e) for the basis of his initial burden and he generally refers to the claims as arising from acts in furtherance of his rights to petition, the Court assumes that Mr. Stites is basing his motion on the Declaratory Relief Cause of Action on C.C.P. § 425.16(e)(1) and (2), which defines “act in furtherance of a person’s right of petition or free speech under the United

States or California Constitution in connection with at public issues" as: "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law" or "(2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." (C.C.P. § 425.16(e)(1)-(2).) (The Court does not find subsections (3) or (4) applicable as this action does not involve a public issue or an issue of public interest.)

The Second Cause of Action for Declaratory Relief by Plaintiffs against all Defendants alleges: "Defendants ... have asserted false and baseless claims against the specific funds. BCLG contends that the claims are frivolous and without basis and are designed to literally ... cheat Plaintiff out of funds to which it is entitled. Accordingly, an actual controversy exists between Plaintiff and the Defendants named in this cause of action." (Compl., ¶40.) Plaintiffs request orders to the effect that Defendants have no valid claims against Plaintiffs and/or the funds held in trust. (Id., ¶41.)

Mr. Stites argues that Plaintiffs' Second Cause of Action for Declaratory Relief arises from Mr. Stites' protected petitioning activity because it seeks to stop the act of filing any claims against Plaintiffs and/or the funds held in their trust account. (Mot. at p.7.) He states in his declaration that when Mr. Zelig threatened to sue him, he told Miller that he was seriously contemplating his right to assert claims against Plaintiffs for all the litigation-related activities he performed for Plaintiffs in the Underlying State Farm case, but despite the Complaint's false allegations, he never filed claims against Plaintiffs or the 38% fee Mr. Zelig took from Miller's settlement. (Mr. Stites Decl., ¶19.)

With respect to the Second Cause of Action, the Court finds that Mr. Stites has not established his initial burden. Plaintiffs' Complaint does not allege facts regarding whether Mr. Stites made written or oral statements before a judicial proceeding or in connection with an issue under consideration or review by a judicial body. At most, Plaintiffs alleged:

27. After the

“confidential” settlement, the Millers, individually and acting by and through the Murphy Defendants and B. Stites, maliciously and without basis whatsoever fabricated the following with the goal of cheating BCLG:

a. That the Fee

Agreement freely negotiated by the Murphy Defendants was unconscionable even though Murphy was a licensed attorney who specialized in a statutory claims, and who admitted perfecting the mechanics of charging unconscionable fees and even though, objectively, there was absolutely nothing unconscionable or inappropriate about the Fee Agreement. In fact, the fee percentages and other provisions in the Fee Agreement were “below market.”

b. Very revealingly,

until after a very favorable settlement was achieved with State Farm, Defendants never took the position that any aspect of the Fee Agreement, negotiated and approved by Murphy and presumably B. Stites, was improper.

c. Other profoundly

nasty, arbitrary, vile, despicable and malicious tactics and accusations according to proof.

(Compl., ¶27.) Plaintiffs did not allege facts that Mr.

Stites made any statements in connection with a court proceeding, that he threatened litigation, filed a lawsuit, etc.

Rather, Mr. Stiles’ states in his own declaration that while he contemplated asserting his rights, he never filed claims against Plaintiffs or for fees. (Mr. Stiles Decl., ¶19.) Based on the allegations of the Complaint, it appears that after settling the Underlying Action, the parties had a private disagreement about the amount of fees Plaintiffs were entitled to under the BCLG Fee Agreement, but such disagreements were not made as a part of or before any judicial proceedings but occurred after the Underlying Action had settled. (See Drell

v. Cohen (2014) 232 Cal.App.4th 24, 30 [“None of the purposes of the anti-SLAPP statute would be served by elevating a fee dispute to the constitutional arena, thereby requiring a party seeking a declaration of rights under an attorney lien to demonstrate a probability of success on the merits in order to obtain equitable relief.”].)

In opposition, Plaintiffs too

cite to Mr. Stiles’ declaration at paragraph 19, stating: “if Stites is willing

to state on the record that he is not making any claims against the fee, then Plaintiffs will happily dismiss this cause of action against him. However, absent that, Plaintiffs request a declaration from the court.” (Opp. at 4:16-18.)

In considering a special motion to strike, the issues are framed by the pleadings. “If there are no acts alleged, there can be no showing that alleged acts arise from protected activity. And, if there cannot be such a showing, the first prong is not satisfied and the anti-SLAPP motion must be denied.” (Central Valley Hospitalists v. Dignity Health (2018) 19 Cal.App.5th 203, 214; see also id. at 2818-219 [upholding trial court’s finding that if there are no acts alleged, there can be no showing that the alleged acts arise from protected activity, and that the trial court could not accept evidence based solely on what the defendant believed plaintiff’s claims are based on].) As stated in Medical Marijuana, Inc. v. ProjectCBD.com (2016) 6 Cal.App.5th 602, 621:

It would be inappropriate for us to insert into a pleading claims for relief based on allegations of activities that plaintiffs simply have not identified, even if the parties suggest on appeal how plaintiffs might have intended to frame those claims or attempt to identify the specific conduct or assertions of statements alleged to be false on which plaintiffs intended to base such claims for relief.[] It is not our role to engage in what would amount to a redrafting of the first amended complaint in order to read that document as alleging conduct that supports a claim that has not in fact been specifically alleged, and then assess whether the pleading that we have essentially drafted could survive the anti-SLAPP motion directed at it. ... Where, as here, the operative complaint alleges no act on the part of the moving defendants in support of the claim or claims for relief that those defendants seek to strike from that complaint, defendants are not entitled to strike those claims for relief pursuant to the anti-SLAPP statute, although they may have other remedies available to them to address deficiencies in the pleading.

(Medical Marijuana, Inc. v. ProjectCBD.com (2016) 6 Cal.App.5th 602, 621.)

Thus, the motion is denied as to the Second Cause of Action for Declaratory Relief because Mr. Stites did not meet his initial burden.

2. Third Cause of Action for Conversion

In the Third Cause of Action for Conversion by BCLG against Mr. Stites, BCLG alleges it had a right to possess specific identifiable funds owed to it (which it claims is confidential pursuant to the settlement entered between the Millers and State Farm). (Compl., ¶43.) BCLG contends that Mr.

Stites intentionally and knowingly interfered with BCLG's right to possess the specific fund, and he knew his position was frivolous and undertaken with malice. (Id., ¶44.) BCLG did not consent to the prevention of access to the specific funds and Mr. Stites' intentional conduct was a substantial factor in causing BCLG's damages.

(Id., ¶45.) BCLG asserts it suffered substantial economic losses, including, but not limited to: (a) loss of access to specific funds, per se; (b) loss of the ability to invest the funds; (c) loss of the ability to utilize the funds in constructive and positive ways; (d) loss of interest on the funds at the legal rate; and (e) other economic losses according to proof. (Id., ¶46.)

Again, Mr. Stites does not cite to any specific subsection under C.C.P. § 425.16(e). At most, he argues that Plaintiffs' Conversion claim, just like the Declaratory Relief claim, arises from trying to stop Mr. Stites' act of asserting any valid claims against Mr. Zelig or the funds held in his trust account. (Mot. at p.7.) Mr. Stites argues he never entered into a fee agreement for the funds, was not a party to the State Farm case, and the only way he could interfere with Mr. Zelig's right to the funds was if he asserted a legal claim for the 38% of funds held in Mr. Zelig's trust account—which he claims is what Plaintiffs' Declaratory Relief and Conversion Causes of Action seek to prevent. (Id. at pp.7-8.)

For the same reasons discussed with respect to the Declaratory Relief Cause of Action, the Court finds that Mr. Stites has not upheld his initial burden on the Conversion Cause of Action.

Furthermore, as pointed out by

Plaintiffs, the Conversion claim's facts arose after the Underlying Action was resolved. (Opp. at 5:19-21; see Compl., ¶¶43-46.) Thus, Mr. Stites has not shown that, as framed by the pleadings, that he engaged in protected petitioning activity with respect to the funds. In contrast, he states that he took no action on the funds at all. (See Mr. Stites Decl., ¶19.)

As such, Mr. Stites did not meet his initial burden on the Third Cause of Action for Conversion. The motion is accordingly denied as to the Third Cause of Action.

3. Fourth Cause of Action for IIED

In the Fourth Cause of Action for IIED by Mr. Zelig against Mr. Stites, Mr. Zelig alleges that Mr. Stites intended to inflict substantial emotional distress on Mr. Zelig or engaged in misconduct (including extortion) with reckless disregard for the probable consequences. (Compl., ¶50.) He alleges Mr. Stites knew there was no basis to accuse Mr. Zelig of abusing TR or to dispute any aspect of BCLG's fee and cost reimbursement request, but Mr. Stites maliciously threatened to submit a false administrative claim against Mr. Zelig to the State Bar of California unless Plaintiffs agreed to take nothing for attorney fees and/or unreimbursed costs, knowing that the false report to the State Bar was upsetting on its face and posed a threat to Mr. Zelig's livelihood notwithstanding its patent invalidity. (Id., ¶50.) Mr. Zelig asserts that he suffered substantial economic loss as a proximate result of Mr. Stites' conduct in engaging in extortion per se and/or aiding and abetting the same. (Id., ¶51.)

With respect to claims that Mr.

Stites accused Mr. Zelig of conducting himself abusively towards TR, the Court notes that Mr. Stites did not address this allegation in the motion and whether it constituted protected petitioning activity, under any of the C.C.P. § 425.16(e) prongs (such as whether this was in connection with a judicial proceeding or if the abuse of a minor is a matter of public interest, etc.). It is unclear where such statements were made and for what purpose. (See Compl., ¶¶24, 50.)

With respect to claims that Mr.

Stites threatened to report Mr. Zelig to the California State Bar unless Plaintiffs agreed to take no attorney's fees and costs (i.e., extortion), Mr. Stites argues that he has established his initial burden, relying on *Barry v. State Bar of California* (2017) 2 Cal.5th 318. (Barry, supra, 2 Cal.5th at 322 ["At the first step of the analysis, the trial court concluded that all of Barry's claims concerned the State Bar's actions in pursuing charges against Barry and recommending to this court that she be disciplined, and thus arose from protected petitioning activity."].) He argues that any claims based on Mr. Stites' alleged statements that he was "acting through" Miller was during pre-lawsuit settlement negotiations to settle the dispute about funds. (Opp. at p.10.)

In *Cohen v. Brown* (2009) 173 Cal.App.4th 302, defendants attorney Michael Brown and his law firm associated the plaintiff as counsel in an underlying personal injury lawsuit. (Id. at 307.) However, Brown did not disclose to the plaintiff that Brown's license had been suspended, which prevented him from practicing law. (Id.) Brown informed the plaintiff that Brown would receive 40% of the verdict/settlement in the underlying action pursuant to a contingency fee agreement. (Id.) The plaintiff and defendants agreed to a fee sharing agreement, which Brown represented to the plaintiff had been disclosed to the client. (Id. at 308.) The plaintiff conducted a substantial amount of work but a week prior to mediation, Brown dismissed plaintiff's services. (Id. at 310.) The plaintiff then filed an attorney's lien. (Id.) Brown then retained another attorney to represent the client in settlement negotiations, and the case settled. (Id.) The plaintiff's complaint alleged that Brown wrote to plaintiff that he would file a complaint with the State Bar if the plaintiff did not sign off on the settlement check and permit the entire attorney's fees to go to Brown and, thereafter, Brown filed a false complaint with the State Bar against the plaintiff over the client's name, resulting in the initiation of an inquiry by the State Bar. (Id. at 310-311.) Brown filed a special motion to strike the plaintiff's complaint, arguing the plaintiff retaliated against Brown for assisting the client to file a complaint with the State Bar and successfully representing the client in the underlying lawsuit and collecting his fees. (Id. at 312.) The trial court denied defendants attorney Michael Brown and the law firm's special motion to strike the plaintiff's complaint, finding that Brown's activities were not acts taken

by Brown as a valid exercise of his rights of petition or free speech, but rather constituted extortion and were therefore illegal. (Id. at 306, 315.)

The Court of Appeal

affirmed. “It is well settled that

extortion is not constitutionally protected speech and thus cannot constitute the ‘valid’ exercise of speech and petition that is protected by section 425.16.” (Cohen, supra, 173

Cal.App.4th at 317.) Furthermore,

California Rules of Professional Conduct, Rule 5–100 states in relevant part:

“A member shall not threaten to present criminal, administrative, or disciplinary charges to obtain an advantage in a civil dispute.” (Id.)

The Court of Appeal found that not only did Brown threaten to present administrative charges, he actually presented administrative charges to the State Bar, through his client, and Brown’s communications with the plaintiff demonstrated that the purpose of filing the State Bar complaint was to gain an advantage in the underlying lawsuit by pressuring plaintiff into immediately signing off on the settlement check, and to make the plaintiff’s life a “living hell” until he did so. (Id.) Thus, while Brown asserted that his motion that the State Bar complaint was about Zerah receiving his share of settlement funds and not about Brown receiving attorney’s fees, the Court of Appeal found that such position was inconsistent with the evidence. (Id. at 318.) Thus, the Court found that the record showed Brown’s actions with respect to the filing of the State Bar complaint constituted extortion. It cited *Flatley v. Mauro* (2006) 39 Cal.4th 299, noting that “(1) the threat made by an extortionist does not have to succeed in producing an exchange of money in order to constitute extortion; (2) the action that is threatened unless money is paid may itself not be an illegal action but instead, it is the coupling of the threat of that action with the demand for money that constitutes the illegality; and (3) it is immaterial to the crime of extortion that the purpose of the threat is to collect money justly due the extortionist.” (Id. at 318.) The Court of Appeal concluded that Brown’s “assistance” to the client in filing the State Bar complaint did not insulate him and determined that his stated basis for relief under section 425.16 was not viable, such that the court need not reach whether plaintiff made a prima facie showing on prevailing on the merits. (Id.)

In the Complaint, Plaintiffs

allege: “Miller, acting individually and expressly through her ‘two attorney sons,’ then took it up a further malicious and extortive notch. More specifically, Defendants then made it clear that unless Plaintiffs relinquished

the right to any payment (and gave the Millers the entire gross settlement amount) that they would maliciously report Plaintiffs to the State Bar even though there was no basis for such a report. This constituted extortion per se and was designed specifically designed to upset and intimidate Zelig. In fact, Defendants were successful in causing Zelig substantial and enduring emotional distress.” (Compl., ¶131.)

However, Mr. Stites states that he never threatened to report Mr. Zelig to the California State Bar and that he did not know that Miller called the California State Bar to complain about Mr. Zelig until after she had already done so. (Mr. Stites Decl., ¶18.) He states that Miller and TR then decided on their own to lodge formal complaints against Mr. Zelig with the California State Bar. (Id.)

Miller provides her declaration, stating that after Mr. Zelig spoke with TR over the phone regarding the Minor’s Compromise Petition, she decided to call the California Bar about Mr. Zelig’s unethical conduct and that she and TR decided on their own, and without talking to her attorney sons, to file complaints about Mr. Zelig’s unethical conduct to the Stat Bar. (Miller Decl., ¶29.) She states that before State Farm sent the total settlement funds to Mr. Zelig’s trust account, she learned that Mr. Murphy that told Mr. Zelig that she had agreed to Mr. Zelig’s offer to take 25% of the settlement funds. (Id., ¶33.) Miller states that though she had already called the State Bar to complaint that Mr. Zelig’s 25% fee was unconscionable, she did not want to give Mr. Zelig a reason to follow through with his threats to sue her attorney sons unless she agreed to his demand. (Id.) Minor TR similarly states that after the Minor’s Compromise Petition process, she and Miller decided on their own to report Mr. Zelig to the California Bar and file complaints to the State Bar about the things he did when he was their attorney in the Underlying Action. (TR Decl., ¶8.)

In response, Mr. Zelig addresses Miller’s declaration statements in his own declaration. To Miller’s paragraph 29, he argues that Miller did not specify the date she called the State Bar or filed written complaints, nor included a copy of the complaint. (Zelig Decl., ¶19.) Mr. Zelig states without any supporting facts: “I may be wrong, but I do not believe Miller is telling the truth.” (Id.) With respect to Miller’s paragraph 33, he states he made multiple attempts to resolve the fee dispute, but Defendants often did not respond. (Id., ¶21.)

Based on the allegations of the

Fourth Cause of Action, the Court finds that Mr. Stites has established his initial burden in showing that his alleged activities of threatening to file a claim with the State Bar constituted protected activity. The Court does not find that, based on Plaintiffs' allegations, that the Flatley/Cohen exception regarding extortion has been established to take this claim out of the protection of the anti-SLAPP statute. Plaintiffs' allegations do not allege sufficient facts regarding extortion, other than to state in a conclusory manner that Mr. Stites' conduct amounts to "extortion per se." Furthermore, the evidence submitted by the parties shows that Mr. Stites did not threaten Mr. Zelig with a State Bar complaint, Miller and TR chose to file a State Bar complaint against Mr. Zelig on their own, and Mr. Zelig's declaration includes no statements that he was in fact threatened (in writing or orally) by Mr. Stites regarding a State Bar complaint.

The Court finds *Geragos v.*

Abelyan (2023) 88 Cal.App.5th 1005 instructive. In that case, the Court of Appeal was left with the parties' declarations, which resulted in a he-said-she-said conflict as to what was actually said regarding whether threats to file a State Bar complaint were made. The Court found that "[t]his does not equate to conclusive evidence of extortion as a matter of law. 'If ... a factual dispute exists about the legitimacy of the defendant's conduct, it cannot be resolved within the first step but must be raised by the plaintiff in connection with the plaintiff's burden to show a probability of prevailing on the merits.' [Citation.]" (*Geragos v. Abelyan* (2023) 88 Cal.App.5th 1005, 1031 [citing *Flatley v. Mauro* (2006) 39 Cal.4th 299, 316].)

Thus, as framed by the pleadings, the

Court finds that Mr. Stites has upheld his initial burden on the first prong with respect to the Fourth Cause of Action for IIED only regarding the alleged threat by Mr. Stites to report Mr. Zelig to the State Bar.

C.

Prong 2:

Probability of Prevailing on the Merits – Plaintiffs' Shifted Burden

For the reasons stated above, the Court finds that Mr. Stites has not upheld his initial burden on whether his speech or conduct arose from protected

activity with respect to the Second and Third Causes of Action. As such, the Court need not reach the second step of whether Plaintiffs can demonstrate the probability of prevailing on these claims.

Thus, the Court only addresses the probability of prevailing on the merits with respect to the Fourth Cause of Action for IIED.

Plaintiffs argue that Mr. Stites, Miller, and TR do not state in their declarations when Miller and TR made the reports nor attach a copy of the State Bar complaint. Mr. Zelig also argues that he has not received any notification that a complaint was made, which “places in further doubt the facially outrageous declarations of Stites, Miller, and TR.” (Opp. at p.15.)

However, as summarized above, Mr. Stites states that he did not threaten Mr. Zelig that he would be filing a State Bar complaint against him. A review of Mr. Zelig’s declaration shows that Mr. Zelig did not make any affirmative statements that Mr. Stites did in fact make such threats. Next, Miller and TR state that they chose to lodge a State Bar complaint against Mr. Zelig, which Mr. Zelig too does not deny with any affirmative statements. Rather, he states in uncertain terms, “I may be wrong, but I do not believe Miller is telling the truth.” (Zelig Decl., ¶19.) While the Court is tasked with accepting as true all evidence favorable to Plaintiffs in evaluating the second prong, it also Plaintiffs’ burden to make an evidentiary showing with competent and admissible evidence. Mr. Zelig’s unsubstantiated opinion that he believes Miller’s declaration statement (made under the penalty of perjury) that she decided to call the California State Bar and then file a complaint against Mr. Zelig to be false do not amount to competent evidence.

Finally, Plaintiffs argue that Mr. Stites’ conduct amounts to extortion.

In *Flatley v. Mauro* (2006) 39 Cal.4th 299, plaintiff (a well-known entertainer) sued defendant/attorney for civil extortion, IIED, and wrongful interference with economic advantage. (*Flatley*, supra, 39 Cal.4th at 305.) The plaintiff’s action was based on a demand letter defendant sent on behalf of his client, which defendant

claimed was a prelitigation settlement offer and arose from his exercise of his constitutionally protected right to petition.

The defendant's letter threatened to publicly accuse plaintiff of rape and report/accuse him of other unspecified violations of the law unless he "settled" by paying the defendant's client (of which defendant would receive 40%); a "settlement of \$100,000,000" awarded as punitive damages; and that defendant would conduct an in-depth investigation of his personal assets would be conducted and made public for the purpose of punitive damages (including immigration, social security issuances and use, and IRS and various state tax levies and information).) The defendant also called, informing plaintiff that the price for his silence was at minimum \$1 million. (Id. at 307-311, 329-330.) The trial court denied defendant's anti-SLAPP motion, finding that defendant's letter and telephone call constituted criminal extortion and extortionate speech was not constitutionally protected, which was affirmed by the Court of Appeal.

The Supreme Court affirmed, stating that "section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, [is] not protected by constitutional guarantees of free speech and petition."

(Id. at 317.) A special

motion to strike must be denied in the narrow circumstances where either the defendant concedes the illegality of its conduct or the illegality is conclusively shown by the evidence. (Id.

at 316.) "Extortion is not a constitutionally protected form of speech." (Id. at 328.) The Supreme Court found that the defendant's

conduct was criminal extortion and was undeserving of protection under the anti-SLAPP statute. (Id. at 326.) It stated:

"Extortion is the obtaining of property

from another, with his consent ... induced by a wrongful use of force or fear...." (Pen.Code, § 518.) Fear, for purposes of extortion "may be induced by a threat, either: [¶] ... [¶] 2. To accuse the individual threatened ... of any crime; or, [¶] 3. To expose, or impute to him ... any deformity, disgrace or crime[.]" (Pen.Code, § 519.) "Every person who, with intent to extort any money or other property from another, sends or delivers to any person any letter or other writing, whether subscribed or not, expressing or implying, or adapted to imply, any threat such as is specified in Section 519, is punishable in

the same manner as if such money or property were actually obtained by means of such threat.” (Pen.Code, § 523.)

Extortion has been characterized as a paradoxical crime in that it criminalizes the making of threats that, in and of themselves, may not be illegal. “[I]n many blackmail cases the threat is to do something in itself perfectly legal, but that threat nevertheless becomes illegal when coupled with a demand for money. (Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian (1990) 218 Cal.App.3d 1058, 1079, 267 Cal.Rptr. 457.) ...

...

Attorneys are not exempt from these principles in their professional conduct. Indeed, the Rules of Professional Conduct specifically prohibit attorneys from “threaten[ing] to present criminal, administrative, or disciplinary charges to obtain an advantage in a civil dispute.” (Cal. Rules of Prof. Conduct, rule 5–100(A).)

(Id. at 326.) The Supreme Court found that though the letter’s terms and the phone calls were couched in “legalese,” they constituted extortion because they threatened to accuse the plaintiff of, or impute to him, crimes and disgrace under Penal Code, § 519(2) and (3), such as rape and violations of immigration and tax law and the Social Security Act, which were unrelated to the alleged injury suffered by defendant’s client and exceeded his representation of that client. (Id. at 330.)

Penal Code, § 519 states:

Fear, such as will constitute extortion, may be induced by a threat of any of the following:

1. To do an unlawful injury to the person or property of the individual threatened or of a third person.
2. To accuse the individual threatened, or a relative of his or her, or a member of his or her family, of a crime.

3. To expose, or to impute to him, her, or them a deformity, disgrace, or crime.

4. To expose a secret affecting him, her, or them.

5. To report his, her, or their immigration status or suspected immigration status.

(Penal Code, § 519.)

Here, Plaintiffs have not conclusively shown by the evidence that Mr. Stites' conduct was illegal or amounted to extortion. Unlike Flatley or Cohen, there is no evidence of letters, emails, or phone calls that amounted to Mr. Stites threatening any of the conduct in Penal Code, § 519. Rather, as shown by Mr. Stites' declaration, which is currently undisputed by Plaintiffs (though the Court notes that Plaintiffs intend to object to his declaration orally at the hearing), Mr. Stites did not threaten to file a claim and did not actually file a claim with the State Bar.

Furthermore, the Court notes that Plaintiffs' opposition papers do not discuss the basic elements of an IIED claim. (See Opp. at pp.12-15.)

The Court finds that Plaintiffs have not established their shifted burden of establishing the probability of prevailing on Mr. Zelig's IIED claim. As such, the motion is granted as to the IIED claim with respect to the State Bar allegations only.

Attorneys Fees

The Court will proactively address the issue of attorney's fees. In the event a defendant sought a fee award, the Court would be disinclined to grant the request for the reasons stated below:

A fee award is not required when the motion, though partially successful, was of no practical effect. (Moran

v. Endres (2006) 135 Cal.App.4th 952, 955–956 [the trial court did not abuse its discretion when it denied the defendant's fees for an anti-SLAPP motion that challenged numerous tort claims brought by the plaintiff but succeeded in striking only a single cause of action for conspiracy].) “[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of a trial court.” (Mann v. Quality Old Time Service, Inc. 139 Cal.App.4th at p. 340; Lin v. City of Pleasanton (2009) 176 Cal.App.4th 408, 426).

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Brandt Stites' Special Motion to Strike came on regularly for hearing on September 11, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

SPECIAL MOTION TO STRIKE IS GRANTED IN PART AS TO THE FOURTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS AS TO DEFENDANT BRANDT STITES' ALLEGED THREATS TO REPORT PLAINTIFF STEVEN ZELIG TO THE STATE BAR. THE REMAINDER OF THE MOTION IS DENIED.

DEFENDANT BRANDT STITES TO PROVIDE NOTICE.

IT IS SO ORDERED.